

(34)

Tentative Ruling

Re: ***In re: Carlos Rodriguez***
Superior Court Case No. 21CECG02536

Hearing Date: July 21, 2026 (Dept. 501)

Motion: by Mercury Insurance Company to File an Interpleader of Funds and Discharge of Liability

Tentative Ruling:

To deny without prejudice.

Explanation:

On August 28, 2024 and October 23, 2024, the hearing on the motion to file an interpleader was continued to allow plaintiff to serve all defendants. On January 8, 2025, plaintiff's motion was ultimately denied without prejudice due to the failure to provide proof of service. Plaintiff's renewed motion was filed on February 5, 2025 and denied without prejudice due to failure to provide proof of service. On February 2, 2026, plaintiff's renewed motion was filed and the original hearing date continued for plaintiff to file proof of service. No proofs of service have been filed.

Plaintiff Mercury Insurance Company's renewed application to serve summons on defendants Ronnie Rodriguez, Adrianna Rodriguez, Raquel Rodriguez, Carlos Rodriguez and Michelle Rodriguez by publication was granted on October 8, 2025. No proof of service by publication has been filed. (Cal. Rules of Court, rule 3.1300, subd. (d).) Defendant Christina Rodriguez was not included in the October 8, 2025 order and there is no proof of service of the motion for defendant Christina Rodriguez. Accordingly, plaintiff Mercury Insurance Company's motion is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 0720/26
(Judge's initials) (Date)